

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
JOHN FERRO,

Plaintiff,

-against-

THE CITY OF NEW YORK , THE NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER THOMAS DESTEFANO and
ASHA STEVEN' ,

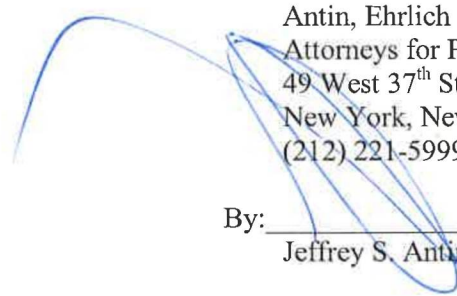
Defendants.
-----X

TO THE ABOVE NAMED DEFENDANTS:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
January 15, 2020

Antin, Ehrlich & Epstein, LLP.
Attorneys for Plaintiff
49 West 37th Street - 7th Floor
New York, New York 10018
(212) 221-5999

By: 
Jeffrey S. Antin

TO: **The City of New York**
100 Church Street
New York, New York
Police Officer Thomas DeStefano
233 West 10th Street
New York, NY, 10014

New York city Police Department
One Police Plaza
New York, New York 10007
Asha Steven

Index No.:
Date Purchased:
Plaintiff designates
KINGS County as the place
of trial.
The basis of the venue is
Situs of Occurrence
residence
SUMMONS

Plaintiff resides at
301 Oriental Blvd
Brooklyn, New York 11235
County of Kings

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
JOHN FERRO,

Plaintiff,

Index No.

-against-

COMPLAINT

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER THOMAS DESTEFANO
and ASHA STEVEN,

Defendants.
-----X

Plaintiff, complaining of the defendants herein by his attorneys, Antin, Ehrlich &
Epstein, LLP, respectfully sets forth and alleges as follows:

1. At all times herein mentioned, the defendant, The City of New York, was and
still is a municipality organized and existing under and by virtues of the laws of the State of New
York.

2. At all times herein mentioned, the defendant, New York City Police Department,
(herein after referred to as "NYPD") was and still is a municipal agency and an agency of
defendant The City of New York duly organized and existing under and by virtue of the laws of
the State of New York.

3. At all times mentioned, plaintiff duly served a Notice of Claim and Intention to
Sue thereupon on the defendant, The City of New York, on August 12, 2019, within the time
prescribed by law. (a copy of the Notice of Claim served is annexed hereto and made a part
hereof)

4. That defendant, The City of New York, has neglected and refused to make an adjustment in payment thereof within more than thirty (30) days after service of said Notice of Claim and Intention to Sue.

5. That the plaintiff has duly complied with all statutes and laws applicable to the defendant, The City of New York, precedent to the making of this claim and bringing this action; the City of New York has waived its right to a GML§50-h hearing of the plaintiff.

6. That on or about May 13, 2019, and thereafter, defendant Asha Steven, without any probable cause, justification, privilege, good reason, and/or immunity (good faith or otherwise), falsely reported plaintiff, John Ferro, struck her with his motor vehicle (as set forth in more detail below) to agents, officers and/or detectives of the 61st Precinct of the New York City Police Department, and this false report caused the police to arrest the plaintiff and falsely charge plaintiff, John Ferro, subsequently, inter alia, with a Felony/Misdemeanor, pursuant to PL 120.00(2); PL 110/120.00(1); PL 120.15; PL 240.26(1) stating that plaintiff with intent to cause physical injury to another person.

7. That on or about May 13, 2019, and thereafter, plaintiff did not ever strike defendant. Asha Steven with his motor vehicle nor did he have any kind of physical interaction and/or physical contact with defendant, Asha Stevens.

8. That on or about May 13, 2019, when claimant was falsely arrested due to the obviously untruthful statements of, inter alia, the criminal complainant, Asha Steven, a copy of the criminal information is annexed hereto and made a part of the claim hereof. Thereafter, despite being arrested in front of his home, the respondents denied the claimant both access to his medications for several serious, medical conditions, as well as access to medical treatment while in the respondents custody, care and control at the 61st Precinct, and thereafter, Brooklyn

Criminal Court and again in a van on the way to Coney Island Hospital, the three locations at which the claimant suffered a seizure. The claimant was dragged out of a New York City Police Department van, handcuffed and feet shackled and dropped onto his feet, he suffered severe personal injuries to his bilateral knees, one of which now needs surgical intervention as a result thereof.

9. That on or about May 13, 2019, plaintiff was transported against his will and consent to the confines of a New York City police precinct known as, and designated as, the 61st police precinct, and thereafter to Central Booking, again against his will and consent.

10. As a result of the foregoing, the plaintiff was forced to appear in Criminal Court until when the criminal proceedings against the plaintiff terminated in his favor and all criminal charges against the plaintiff were dismissed on the merits of plaintiff's defense.

11. Neither the arrest nor subsequent prosecution of plaintiff was supported by any evidence that a crime had been committed.

12. Upon information and belief, all of the foregoing occurred with malice and aforethought on defendant, Asha Steven's part, and without justifiable cause or reason or probable cause.

13. Any allegation in support of the charges, prosecution and/or arraignment, or allegation that a crime had been committed by plaintiff constituted, among other things, fraud, perjury, and/or a knowing, intentional, reckless and/or negligent omission of material fact.

14. Defendant, Asha Steven played an active role in the false arrest and prosecution of plaintiff, such as giving advice, giving encouragement, and/or importuning the authorities to act.

15. Defendants are not entitled to any immunity(ies), qualified or otherwise.

16. Plaintiff was injured as set forth herein without any negligence or culpable conduct on the part of the plaintiffs contributing thereto.

17. Upon information and belief, Police Officer Thomas Destefano, (herein after referred to as “Destefano”) was an agent, servant and/or employee of one or both of the co-defendants.

18. That at the aforesaid time and place the defendant, “NYPD”, its agents, servants and/or employees were called to the scene, including defendant “Destefano”.

19. That at the aforesaid time and place, defendant, Asha Steven made false accusations about the plaintiff, to one or more of the co-defendants.

20. That at the aforesaid location on May 13, 209 at approximately 12:00 p.m., over his objection to the lack of investigation by defendant, “Destefano”, and other agents, servants and/or employees of the defendant “NYPD”, plaintiff was handcuffed, arrested, detained and falsely prosecuted.

21. Despite the above, defendant “Destefano”, falsely arrested plaintiff.

22. That plaintiff was thereafter spirited away from the scene of the arrest by the aforementioned officer and/or other agents, servants and/or employees of the defendant, The City of New York and/or “NYPD” to the confines of a New York City Police precinct, more specifically 61st precinct.

23. Thereafter, defendants, their agents, servants and/or employees transported the plaintiff to Central Booking.

24. While in the custody of defendants, their agents, servants, officers and/or employees, the plaintiff was subjected to embarrassing, humiliating, disparaging, abusive, intimidating, harassing and terrorizing conduct by said defendants, their agents, servants, officers

and/or employees, including unlawful searches and interrogations all without probable cause or justifiable reason.

25. That on or about May 13, 2019 plaintiff was charged with a misdemeanor PL 260.20(2).

26. That the aforesaid charges were brought against the plaintiff, inter alia, directly as a result of false, misleading, unlawful and improper charges and accusations made by defendant(s), their agents, servants, officers and/or employees.

27. The defendants, their agents, servants, officers and/or employees committed the foregoing acts notwithstanding the fact that the plaintiff had not committed a crime.

28. The defendant, "Destefano" and defendants, "City and "NYPD", their agents, servants, officers and/or employees, knew or should have known that the aforementioned charges and accusations were false.

29. All of the foregoing conduct was committed without probable cause, without excuse or justification, unlawfully and against the will and consent of the plaintiff.

30. As a consequence of the unlawful and wrongful conduct to which he was subjected, the plaintiff (a) suffered imprisonment; (b) was verbally abused and intimidated, and harassed; (c) was subjected to degrading, dehumanizing and emotionally destructive condition; (d) was publicly shamed, disgraced, ridiculed and humiliated; (e) suffered and continue to suffer still from mental pain and anguish, public humiliation and embarrassment and other items of attendant damages; (f) suffered emotional distress and psychological trauma; (g) suffered injuries to his reputation; and (h) were deprived of his civil rights as well as his State and Federal constitutional rights.

31. During all relevant times, defendants, their agents, servants, officers and/or employees were acting under color of state law or authority and/or within the scope of their official authority and employment.

32. The limitations set forth in Article 16 of the CPLR are applicable to this action and this action falls within one or more of the exceptions set forth in Section 1602 of the CPLR.

33. Defendants the City of New York and New York City Police Department and/or “Destefano” are liable to plaintiff under the principles of *respondeat superior*.

34. That as a result of the foregoing, plaintiff, John Ferro, has been damaged in a sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction plus attorneys’ fees.

AS AND FOR A FIRST CAUSE OF ACTION
(FALSE ARREST)
AGAINST ALL DEFENDANTS

35. Plaintiff repeats, reiterates and re-alleges each and every allegations contained in paragraphs “1” - “34 ” above as if the same were more fully re-alleged herein at length.

36. By virtue of the foregoing one or more of the defendants are liable for the false arrest of the plaintiff John Ferro, and all resultant damages.

37. That at all relevant times, the plaintiff was conscious of his arrest and confinement as aforesaid and did not consent to same.

38. The arrest and confinement of the plaintiff was not otherwise privileged or supported by probable cause.

39. One or more of the defendants, by virtue of the foregoing conduct, did cause plaintiff to be falsely arrested.

40. By reason of the foregoing, plaintiff has been damaged, and hereby make claim for compensatory, punitive, exemplary and/or other damages in amounts that exceed the jurisdictional limits of any court that would otherwise have jurisdiction over this matter.

AS AND FOR A SECOND CAUSE OF ACTION
(Malicious Prosecution)
AGAINST ALL DEFENDANTS

41. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs "1" - "40" above as if the same were more fully re-alleged herein at length.

42. By virtue of the foregoing, one or more of the defendants are liable to plaintiff for the malicious prosecution of the plaintiff, and all resultant damages.

43. That one or more of the defendants caused plaintiff to be seized and detained, and brought charges against plaintiff with the conscious objective of causing plaintiff's detention and imprisonment as well as convictions on unsupported charges through the intentional use of false, misleading and/or perjured evidence or testimony, through deliberate indifference to whether the charges, allegations, evidence and/or testimony were false, misleading or perjured, and/or through careless, reckless, grossly negligent or negligent conduct.

44. As a result, one or more of the defendant was the direct and proximate cause of plaintiff's wrongful arrest, detention, prosecution, and resultant damages.

45. But for the false, misleading and/or perjured evidence/testimony provided to the New York City Police Department and/or the aforesaid Criminal Court, by defendant Asha Steven, and/or the other acts of misconduct by one or more of the defendants as set forth above, plaintiff would not have been arrested, detained, charged, prosecuted, or imprisoned and plaintiff would not have suffered his losses and damages.

46. By virtue of the foregoing, defendant, Asha Steven, initiated, or caused the initiation and/or continuation of, false criminal proceedings against plaintiff in a court of law and did so with malice.

47. The criminal proceedings instituted and continued against plaintiff were wholly without legal or probable cause, were instituted and continued with malice, and were terminated in favor of the plaintiff.\

48. By reason of the foregoing, Plaintiff has been damaged, and hereby make claim for compensatory, punitive, exemplary and/or other damages in amounts that exceed the jurisdictional limits of any court that would otherwise have jurisdiction over this matter.

AS AND FOR A THIRD CAUSE OF ACTION ON
(Abuse of Process)
AGAINST ALL DEFENDANTS

49. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs "1" - "48" above as if the same were more fully re-alleged herein at length.

50. That defendants, by virtue of the forgoing conduct did commit abuse of process by activating regularly issued process, to wit, the filing of false criminal complaints against the plaintiff.

51. That defendants, sought detriment to plaintiff without excuse or justification and which was outside the legitimate ends of the criminal process.

52. By reason of the foregoing, plaintiff has been damaged, and hereby make claim for compensatory, punitive, exemplary and/or other damages in amounts that exceed the jurisdictional limits of any court that would otherwise have jurisdiction over this matter.

AS AND FOR A FOURTH CAUSE OF ACTION
(False Imprisonment)
AGAINST ALL DEFENDANTS

53. Plaintiff repeats, reiterates and re-alleges each and every allegations contained in paragraphs "1" - "52" above as if the same were more fully re-alleged herein at length.

54. By virtue of the foregoing, defendant are liable to plaintiff for the false imprisonment of the plaintiff, and all resultant damages.

55. At all relevant times, the plaintiff was conscious of the confinement and/or imprisonment and did not consent to same.

56. The confinement and/or imprisonment of the plaintiff was not otherwise privileged, was against plaintiff's will and consent, and was not supported by justifiable or probable cause.

57. That the defendants by virtue of the foregoing conduct, did falsely imprison plaintiff and/or cause plaintiff to be falsely imprisoned.

58. By reason of the foregoing, plaintiff has been damaged, and hereby makes claim for compensatory, punitive, exemplary and/or other damages in amounts that exceed the jurisdictional limits of any court that would otherwise have jurisdiction over this matter.

AS AND FOR A FIFTH CAUSE OF ACTION
AGAINST DEFENDANT ASHA STEVENS
(Defamation)
AGAINST ALL DEFENDANTS

59. Plaintiffs repeat, reiterate and re-allege each and every allegations contained in paragraphs "1" - "58" above as if the same were more fully re-alleged herein at length.

60. That on or about May 31, 2019, defendant, Asha Steven without any, inter alia, probable cause, justification, privilege, good reason, or immunity (good faith or otherwise), falsely reported various forms and allegations of stalking in the fourth degree as against plaintiff.

61. Defendant, Asha Steven, intentionally published false statements as set forth above which exposed plaintiffs to public contempt, hatred, ridicule, aversion, and/or disgrace.

62. This defendant published the aforesaid false statements without privilege or authorization to a third party or person.

63. This defendant published the aforesaid statements both in writing and verbally to a third party or person.

64. The false statements caused harm to plaintiff including special harm.

65. This defendant's false, baseless, malicious, spiteful, and bad faith accusations, of various forms and allegations are defamatory on its face.

66. That as a proximate result of the false, baseless, malicious, spiteful, and bad faith accusations, plaintiff, was arrested, detained and imprisoned.

67. Plaintiff has suffered and/or sustained severe damage to their reputation, humiliation, shame, embarrassment, and have been subjected to public ridicule, contempt, and/or aversion, from these wrongful actions.

68. By reason of the foregoing, plaintiff has been damaged, and hereby makes claim for compensatory, punitive, exemplary and/or other damages in amounts that exceed the jurisdictional limits of any court that would otherwise have jurisdiction over this matter.

AS AND FOR SIXTH CAUSE OF ACTION
AGAINST ALL DEFENDANTS
(Libel)

69. Plaintiffs repeat, reiterate and re-allege each and every allegations contained in paragraphs "1" - "68" above as if the same were more fully re-alleged herein at length.

70. That on or about May 13, 2019, defendant, Asha Steven without any, inter alia, probable cause, justification, privilege, good reason, or immunity (good faith or otherwise), falsely reported various forms and allegations against plaintiff.

71. This defendant intentionally published false statements as set forth above which exposed plaintiffs to public contempt, hatred, ridicule, aversion, and/or disgrace.

72. This defendant published the aforesaid false statements without privilege or authorization to a third party or person.

73. This defendant published the aforesaid statements both in writing and verbally to a third party or person.

74. The false statements caused harm to plaintiffs including special harm.

75. This defendant's false, baseless, malicious, spiteful, and bad faith accusations, of various forms and allegations of stalking in the fourth degree are libelous on its face.

76. That as a proximate result of the false, baseless, malicious, spiteful, and bad faith accusations, plaintiff, was arrested, detained, imprisoned, and forced to appear in Criminal Court against his will and consent.

77. By reason of the foregoing, plaintiffs have been damaged, and hereby make claim for compensatory, punitive, exemplary and/or other damages in amounts that exceed the jurisdictional limits of any court that would otherwise have jurisdiction over this matter.

AS ANND FOR A SEVENTH CAUSE
AGAINST ALL DEFENDANTS
(Slander)

78. Plaintiffs repeat, reiterate and reallege each and every allegations contained in paragraphs "1" - "77" above as if the same were more fully realleged herein at length.

79. That on or about May 13, 2019, defendant, Asha Steven, without any, inter alia, probable cause, justification, privilege, good reason, or immunity (good faith or otherwise), falsely reported various forms and allegations of stalking in the fourth degree as against plaintiff.

80. This defendant intentionally published false statements as set forth above which exposed plaintiffs to public contempt, hatred, ridicule, aversion, and/or disgrace.

81. This defendant published the aforesaid false statements without privilege or authorization to a third party or person.

82. This defendant published the aforesaid statements both in writing and verbally to a third party or person.

83. The false statements caused harm to plaintiffs including special harm.

84. This defendant's false, baseless, malicious, spiteful, and bad faith accusations, of various forms and allegations of plaintiff are slander on its face.

85. That as a proximate result of the false, baseless, malicious, spiteful, and bad faith accusations, plaintiff, was arrested, detained, imprisoned and forced to appear in Criminal Court against her will and consent.

86. By reason of the foregoing, plaintiff has been damaged, and hereby make claim for compensatory, punitive, exemplary and/or other damages in amounts that exceed the jurisdictional limits of any court that would otherwise have jurisdiction over this matter.

AS AND FOR NINTH CAUSE OF ACTION
AGAINST ALL DEFENDANTS

(Intentional Infliction of Emotional Distress)

87. Plaintiff repeats, reiterates and re-alleges each and every allegations contained in paragraphs "1" - "86" above as if the same were more fully re-alleged herein at length.

88. The wrongful actions of one or more of the defendants, in having plaintiff falsely arrested and imprisoned, as set described above, were extreme and outrageous.

89. The conduct of one or more of the defendants, as alleged herein, disregarded a substantial probability of causing severe emotional distress.

90. Through these actions, one or more of the defendant intentionally caused plaintiff severe emotional distress as described above.

91. By reason of the foregoing, plaintiff has been damaged, and hereby makes claim for compensatory, punitive, exemplary and/or other damages in amounts that exceed the jurisdictional limits of any court that would otherwise have jurisdiction over this matter.

AS AND FOR A TENTH CAUSE OF ACTION
AGAINST ALL DEFENDANTS

(Prima Facie Tort)

92. Plaintiffs repeat, reiterate and re-allege each and every allegations contained in paragraphs "1" - "91" above as if the same were more fully re-alleged herein at length.

93. That defendants intentionally inflicted harm upon plaintiff which resulted in special damages

94. That defendants' conduct, by their acts or series of acts, even if otherwise lawful, was without any excuse or justification.

95. That defendants, by virtue of the foregoing conduct, did commit a prima facie tort upon plaintiff.

96. By reason of the foregoing, plaintiff has been damaged, and hereby make claim for compensatory, punitive, exemplary and/or other damages in amounts that exceed the jurisdictional limits of any court that would otherwise have jurisdiction over this matter.

AS AND FOR AN ELEVENTH CAUSE OF ACTION
AGAINST ALL DEFENDANTS
(Negligent Infliction of Emotional Distress)

97. Plaintiff repeats, reiterates and re-alleges each and every allegations contained in paragraphs "1" - "96" above as if the same were more fully re-alleged herein at length.

98. That defendants, knew or should have known that the malicious actions and false statements against plaintiff would lead to criminal action(s) and charges against plaintiff as well as his false arrest, false imprisonment, and being compelled to appear in Criminal Court.

99. Defendants had a duty of care towards plaintiff and did breach that duty and did negligently inflict emotional distress upon plaintiff.

100. That these wrongful actions were the proximate cause of plaintiff's severe emotional distress and mental suffering.

101. By reason of the foregoing, plaintiff has been damaged, and hereby make claim for compensatory and/or other damages in amounts that exceed the jurisdictional limits of any court that would otherwise have jurisdiction over this matter.

AS AND FOR A TWELVTH CAUSE OF ACTION
AGAINST ALL DEFENDANTS
Willful Misconduct, Negligence and Gross Negligence)

102. Plaintiffs repeat, reiterate and re-allege each and every allegations contained in paragraphs "1" - "101" above as if the same were more fully re-alleged herein at length.

103. That defendants owed a duty(ies) of care to plaintiffs including the duty to cause no harm to plaintiff.

104. That defendants, by virtue of the foregoing conduct, failed to exercise their duty(ies) owed to plaintiff in a proper and non-negligent manner and with the level of care that a reasonable and prudent person would have exercised under the circumstances.

105. Defendants' conduct was so grossly negligent, reckless and/or careless as to show complete disregard for the rights and safety of others.

104. As a result of the foregoing, plaintiff were injured as hereinbefore alleged without any negligence or culpable conduct on the part of the plaintiff contributing thereto.

105. That defendants committed the foregoing acts notwithstanding the fact that the plaintiff, had not committed a crime.

106. That the conduct of defendants resulted in plaintiff's wrongful detention, booking, prosecution and resultant damages.

107. That defendants knew or should have known that the aforementioned accusations were false.

108. That defendants' conduct was committed without probable cause, or reasonable cause to believe that the plaintiff had engaged in any criminal activity.

109. That defendants knew and or should have known that the malicious actions and false statements against plaintiff would lead to disciplinary and criminal action(s) against plaintiff.

110. That defendants' conduct was objectively unreasonable and was undertaken intentionally with willful indifference to plaintiff's constitutional rights.

111. That defendants acted with deliberate indifference to whether the allegations were false, baseless and/or through careless, reckless and grossly negligent disregard to the veracity of the allegations with the conscious objective of causing plaintiff's arrest, detention and imprisonment, as well as charges being filed against the plaintiff, through the intentional use of false, baseless, malicious, spiteful, and bad faith accusations.

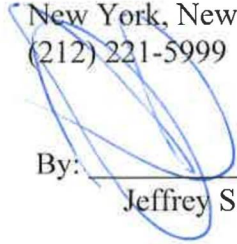
112. That but for the false, misleading and unreliable evidence and testimony that defendant, Asha Steven, provided to the defendants City of New York and/or the New York City Police Department, and the other acts of misconduct by defendants as set forth above, the plaintiff would not have been detained, charged, prosecuted or imprisoned and would not have suffered her losses and damages.

113. By virtue of the foregoing, defendant initiated, or caused the initiation and/or continuation of, criminal proceedings against the plaintiff that resolved in Plaintiff's favor, and consistent with innocence of the accused.

WHEREFORE, plaintiff demands judgment against the defendants, on each cause of action in amounts that exceed the jurisdictional limits of any court that would otherwise have jurisdiction over this matter, together with punitive damages, costs, expenses, fees, and disbursements of this action, as well as such other and further relief as is just, proper, and equitable.

Dated: New York, New York
January 15, 2020

Antin, Ehrlich & Epstein, LLP
Attorneys for Plaintiff
49 West 37th Street - 7th Fl.
New York, New York 10018
(212) 221-5999

By: 

Jeffrey S. Antin

In the Matter of the Claim of

JOHN FERRO

-against-

THE CITY OF NEW YORK
(THE NEW YORK CITY POLICE DEPARTMENT)

TO:

New York City Comptroller
Hon. Scott M. Stringer
One Centre Street
New York, New York 10007

7018 2290 0002 1735 8515

Corporation Counsel
Zachary W. Carter, Esq.
The City of New York
100 Church Street
New York, New York 10007

7018 2290 0002 1735 8539

1. The name and post-office address of each Claimant and Claimant's attorney is:

John Ferro
301 Oriental Boulevard
Brooklyn, NY 11235

Antin, Ehrlich & Epstein, LLP
49 West 37th Street, 7th Floor
New York, NY 10018
(212) 221-5999

2. The nature of the claims:

Monetary damages for false arrest, false imprisonment, malicious prosecution, negligent infliction of emotional distress, intentional infliction of emotional distress, negligence, assault, battery, excessive force, gross negligence, municipal liability, libel, slander, prima facie tort, violation of rights protected under the United States Constitution, and the Constitution of the State of New York, violation of civil rights under 42 USC Section 1983, denial of access to medication and medical treatment, and attorney's fees, all due to the intentional and/or negligent acts/omissions of the Respondents, their agents, servants and/or employees herein. The Respondents are also liable to the Claimant as a result of their negligence in the hiring, training, supervision and/or retention of their employees and/or pursuant to the doctrine of respondeat superior.

3. The time when, the place where and the manner in which the claim arose:

The Claim arose on May 13, 2019, when claimant was falsely arrested due to the obviously untruthful statements of, inter alia, the criminal complainant, Asha Stevens, a copy of the criminal information is annexed hereto and made a part of the claim hereof. Thereafter, despite being arrested in front of his home, the respondents denied the claimant both access to his medications for several serious, medical conditions, as well as access to medical treatment while in the respondents custody, care and control at the 61st Precinct, and thereafter, Brooklyn Criminal Court and again in a van on the way to Coney Island Hospital, the three locations at which the claimant suffered a seizure. The claimant was dragged out of a New York City Police Department van, handcuffed and

feet shackled and dropped onto his feet, he suffered severe personal injuries to his bilateral knees, one of which now needs surgical intervention as a result thereof.

4. The items of damage or injuries claimed are:

The items of damage or injuries claimed are: monetary damages for the intentional and negligent violation of claimant's constitutional and statutory rights, for the intentional and negligent violation of claimant's civil rights, for the infliction of emotional distress on the claimant, for the false arrest of the claimant, for the malicious prosecution of the claimant for his assault, battery, excessive force, and denial of access to medication and medical treatment and related expenses, including attorney's fees, sustained by the claimant, along with loss of enjoyment of life all due to the negligence of the respondents, their agents, servants and/or employees herein. The claimant suffered severe and permanent personal injuries as a result of the three (3) seizures he sustained in the respondents custody, care and control, as well as the damage done to his legs, and in particular his knees, as a result of being dragged out of the back of a police van onto his feet while handcuffed and shackled.

TOTAL AMOUNT CLAIMED TWO MILLION AND 00/100 (\$2,000,000.00) DOLLARS.

Dated: August 12, 2019

ANTIN, EHRLICH & EPSTEIN, LLP

By: _____

Scott W. Epstein
49 West 57th Street, 7th Floor
New York, New York 10018
(212) 221-5999

ATTORNEY'S VERIFICATION

STATE OF NEW YORK

COUNTY OF NEW YORK: ss

Scott W. Epstein, duly sworn, deposes and says:

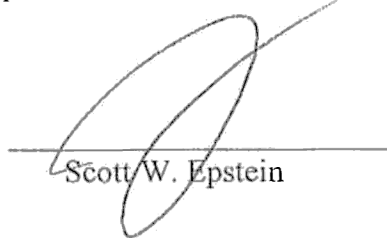
I am an attorney duly admitted to practice law in the State of New York. I affirm the following under the penalties of perjury:

I am a partner of the firm of Antin, Ehrlich & Epstein, LLP, the attorneys of record for Claimants.

I have read the annexed NOTICE OF CLAIM and know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon personal knowledge is based upon the following:

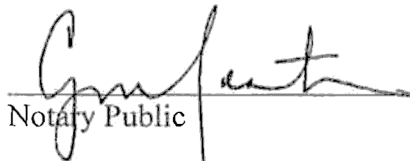
Interviews and/or discussions with the Claimant and papers and/or documents in the file.

The reason I make this verification instead of Claimant(s) is because said Claimant(s) reside(s) outside of the county within which your deponent maintains his office for the practice of law.



Scott W. Epstein

Sworn to before me on this
August 12, 2019

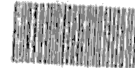


Notary Public

CYNTHIA V. FOSTER
Commissioner of Deeds
City of New York 3-6834
Certificate filed in Bronx County
Commission Expires: 4/1/21

CRIMINAL COURT OF THE CITY OF NEW YORK
PART APAR COUNTY OF KINGS

CR-018532-19KN

STATE OF NEW YORK
COUNTY OF KINGS

THE PEOPLE OF THE STATE OF NEW YORK

V.

JOHN FERRO

POLICE OFFICER THOMAS DESTEFANO SHIELD NO.8095, OF 061 COMMAND SAYS THAT ON OR ABOUT MAY 13,2019 AT APPROXIMATELY 12:10 PM AT 301 ORIENTAL BOULEVARD IN THE COUNTY OF KINGS, STATE OF NEW YORK,

THE DEFENDANT COMMITTED THE OFFENSE(S) OF:

VTL 319(1)	FAILURE TO HAVE PROOF OF FINANCIAL SECURITY
VTL 401(1)(A)	UNREGISTERED MOTOR VEHICLE
PL 120.00(1)	ASSAULT IN THE THIRD DEGREE (DGO)
VTL 600(2)(A)	LEAVING THE SCENE OF AN INCIDENT WITHOUT REPORTING
PL 110/120.00(1)	ATTEMPTED ASSAULT IN THE THIRD DEGREE (DGO)
PL 120.15	MENACING IN THE THIRD DEGREE(DGO)
VTL 511(1)(A)	AGGRAVATED UNLICENSED OPERATION OF A MOTOR VEHICLE
	IN THE THIRD DEGREE
VTL 511(2)(A)(IV)	AGGRAVATED UNLICENSED OPERATION OF A MOTOR VEHICLE
	IN THE SECOND DEGREE
PL 240.26(1)	HARASSMENT IN THE SECOND DEGREE
VTL 509(1)	UNLICENSED OPERATOR

IN THAT THE DEFENDANT DID:

WITH INTENT TO CAUSE PHYSICAL INJURY TO ANOTHER PERSON, CAUSE SUCH INJURY TO SUCH PERSON OR TO A THIRD PERSON; WITH INTENT TO CAUSE PHYSICAL INJURY TO ANOTHER PERSON, ATTEMPT TO CAUSE SUCH INJURY TO SUCH PERSON OR TO A THIRD PERSON; BY PHYSICAL MENACE, INTENTIONALLY PLACE OR ATTEMPT TO PLACE ANOTHER PERSON IN FEAR OF DEATH, IMMINENT SERIOUS PHYSICAL INJURY OR PHYSICAL INJURY; WITH INTENT TO HARASS, ANNOY OR ALARM ANOTHER PERSON, STRIKE, SHOVE, KICK OR OTHERWISE SUBJECT SUCH OTHER PERSON TO PHYSICAL CONTACT, OR ATTEMPT OR THREATEN TO DO THE SAME; OPERATE A VEHICLE IN THIS STATE WITHOUT HAVING IN FULL FORCE AND EFFECT THE FINANCIAL SECURITY REQUIRED BY THE PROVISIONS OF THIS CHAPTER; OPERATE A MOTOR VEHICLE UPON THE PUBLIC HIGHWAYS OF THIS STATE WITHOUT SUCH VEHICLE BEING REGISTERED IN ACCORDANCE WITH THE PROVISIONS OF THIS ARTICLE; OPERATE OR DRIVE A MOTOR VEHICLE UPON A PUBLIC HIGHWAY OF THIS STATE OR UPON ANY SIDEWALK OR TO OR FROM ANY LOT ADJACENT TO A PUBLIC GARAGE, SUPERMARKET, SHOPPING CENTER OR CAR WASHING ESTABLISHMENT OR TO OR FROM OR INTO A PUBLIC GARAGE OR CAR WASHING ESTABLISHMENT WITHOUT BEING DULY LICENSED PURSUANT TO THE PROVISIONS OF THIS CHAPTER; OPERATE A MOTOR VEHICLE UPON A PUBLIC HIGHWAY WHILE KNOWING OR HAVING REASON TO KNOW THAT SUCH PERSON'S LICENSE OR PRIVILEGE OF OPERATING SUCH MOTOR VEHICLE IN THIS STATE OR PRIVILEGE OF OBTAINING A LICENSE TO OPERATE SUCH MOTOR VEHICLE ISSUED BY THE COMMISSIONER WAS SUSPENDED, REVOKED OR OTHERWISE WITHDRAWN BY THE COMMISSIONER; COMMIT THE OFFENSE OF AGGRAVATED UNLICENSED OPERATION OF A MOTOR VEHICLE IN THE THIRD DEGREE AS DEFINED IN SECTION FIVE HUNDRED ELEVEN SUBDIVISION ONE SUBDIVISION A OF THE VEHICLE AND TRAFFIC LAW, AND DEFENDANT HAD IN EFFECT THREE OR MORE SUSPENSIONS IMPOSED ON AT LEAST THREE SEPARATE DATES, FOR FAILURE TO ANSWER, APPEAR OR PAY A FINE; OPERATE A MOTOR VEHICLE, KNOWING OR HAVING CAUSE TO KNOW THAT PERSONAL INJURY HAD BEEN CAUSED TO ANOTHER PERSON DUE TO AN INCIDENT INVOLVING THE MOTOR VEHICLE OPERATED BY SUCH PERSON, LEAVE THE PLACE WHERE SAID PERSONAL INJURY OCCURRED WITHOUT STOPPING, EXHIBITING LICENSE AND INSURANCE IDENTIFICATION CARD FOR SUCH VEHICLE, GIVING HIS OR HER NAME, RESIDENCE, INCLUDING STREET AND NUMBER, INSURANCE CARRIER AND INSURANCE IDENTIFICATION INFORMATION, INCLUDING BUT NOT LIMITED TO THE NUMBER AND EFFECTIVE DATES OF SAID INDIVIDUAL'S POLICY, AND LICENSE NUMBER TO THE PARTY SUSTAINING THE INJURY, IF PRACTICAL, AND ALSO TO A POLICE OFFICER, OR, IN THE EVENT THAT NO POLICE OFFICER WAS IN THE VICINITY OF THE PLACE OF SAID INJURY, WITHOUT REPORTING THE SAME AS SOON AS PHYSICALLY ABLE TO THE NEAREST POLICE STATION.

THE SOURCE OF DEPONENT'S INFORMATION AND THE GROUNDS FOR DEPONENT'S BELIEF ARE AS FOLLOWS:

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DEPONENT IS INFORMED BY ASHA STEPHEN THAT, AT THE ABOVE TIME AND PLACE, FOLLOWING THE INFORMANT STATING TO THE DEFENDANT THAT DEFENDANT CANNOT TAKE DEFENDANT'S CAR BECAUSE DEFENDANT'S CAR WAS BEING REPOSSESSED, THE DEFENDANT DID STRIKE THE INFORMANT ABOUT THE LEGS WHILE DRIVING A 2008 MERCEDES BENZ ALABAMA STATE TEMPORARY LICENSE PLATE NO.TN102715, CAUSING THE INFORMANT TO FALL ONTO THE INFORMANT'S CAR.

DEPONENT IS FURTHER INFORMED BY THE INFORMANT THAT THE ABOVE DESCRIBED ACTIONS CAUSED INFORMANT TO SUFFER SUBSTANTIAL PAIN ABOUT THE LEGS, TO BE TREATED AT A LOCAL HOSPITAL, TO FEAR FURTHER PHYSICAL INJURY, AND TO BECOME ALARMED AND ANNOYED.

DEPONENT IS FURTHER INFORMED BY THE INFORMANT THAT THE DEFENDANT LEFT THE SCENE OF THE ABOVE-MENTIONED COLLISION WITHOUT EXHIBITING THE DEFENDANT'S LICENSE OR INSURANCE IDENTIFICATION CARD TO THE INFORMANT.

DEPONENT IS FURTHER INFORMED BY THE INFORMANT THAT THE DEFENDANT DID NOT REPORT THE ABOVE-MENTIONED COLLISION TO ANY POLICE OFFICER.

DEPONENT FURTHER STATES THAT DEPONENT REQUESTED PROOF OF REGISTRATION AND INSURANCE FROM DEFENDANT AND THAT DEFENDANT WAS UNABLE TO PROVIDE DEPONENT WITH SAID PROOF OF REGISTRATION AND INSURANCE.

DEPONENT FURTHER STATES THAT DEPONENT CONDUCTED A CHECK OF THE OFFICIAL, COMPUTERIZED DEPARTMENT OF MOTOR VEHICLES DRIVING RECORD(S) (PURSUANT TO VTL 201) RELATING TO DEFENDANT.

DEPONENT OBSERVED SAID RECORD(S) TO INDICATE THAT, AT THE ABOVE TIME, DEFENDANT WAS DRIVING WITH HIS PRIVILEGE TO DO SO HAVING BEEN SUSPENDED IN THE STATE OF NEW YORK.

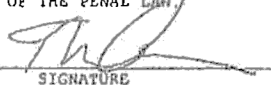
DEPONENT FURTHER OBSERVED THE OFFICIAL DEPARTMENT OF MOTOR VEHICLES RECORD(S) TO INDICATE THAT, AT THE ABOVE TIME, DEFENDANT HAD 9 SUSPENSIONS ON 3 DATES.

DEPONENT FURTHER STATES THAT DEPONENT'S BASIS FOR BELIEVING THAT THE DEFENDANT HAD REASON TO KNOW THAT HIS LICENSE WAS SUSPENDED IS AS FOLLOWS: THE ABOVE-DESCRIBED NEW YORK STATE DEPARTMENT OF MOTOR VEHICLES COMPUTER CHECK REVEALED THAT DEFENDANT'S LICENSE WAS SUSPENDED FOR INSURANCE NOT IN EFFECT AND FAILURE TO ANSWER OR APPEAR IN RESPONSE TO A TRAFFIC SUMMONS, AND ALL SUCH SUMMONS HAVE PRINTED ON THEM THE WARNING "IF YOU DON'T ANSWER THIS TICKET BY MAIL WITHIN 15 DAYS YOUR LICENSE WILL BE SUSPENDED".

DEPONENT FURTHER STATES THAT THE NEW YORK STATE DEPARTMENT OF MOTOR VEHICLES MAELS A NOTICE OF SUSPENSION TO ANY SUCH PERSON AT THEIR LAST KNOWN ADDRESS.

FALSE STATEMENTS MADE IN THIS DOCUMENT ARE
PUNISHABLE AS A CLASS A MISDEMEANOR PURSUANT
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